

	natural person and holder of individual Contractor License No. 1101437. No relief is sought on behalf of any corporation.” (FAP, ¶ 6.) However, the exhibits attached to the Petition and the judicially noticeable documents proffered by Respondent (the authenticity of which Petitioner “does not dispute,” <i>see</i> ROA 55) establish that Petitioner is not the licensee associated with License No. 1101437. In fact, in Petitioner’s “Response to Respondent’s Request for Judicial Notice,” Petitioner states the following: “Respondent’s RJN establishes the following undisputed facts : 1. All citations at issue were issued exclusively to Harrison Building Inc., a corporate licensee. 2. Harrison Building Inc. filed bankruptcy in May 2024 and was later dissolved. 3. Petitioner does not hold an individual contractor license. 4. No citation, accusation, or disciplinary action has ever been issued against Petitioner personally. These facts are not contested. They are central to Petitioner’s claim.” (ROA 55.) Because Petitioner is setting forth two different arguments about whether he is the licensee under License No. 1101437, the Court finds that Petitioner has not established standing. For this same reason, the Petition remains generally uncertain. Whether Petitioner, as an individual, is licensed under License No. 1101437 is pivotal in establishing standing because Petitioner is claiming that he has been injured by Respondent because Respondent attached certain citations and suspensions to “Petitioner Patrick Audenis’s individual license record (License No. 1101437).” Based on the allegations in the Petition, the documents attached thereto, and the judicially noticed documents, it appears that License No. 1101437 is suspended. Thus, if License No. 1101437 is not held by Petitioner as an individual, Petitioner does not have standing to sue for any wrongful citation attachments or suspensions to that license number and the action must be brought by the corporation or individual holding License No. 1101437. The demurrer to the entire First Amended Petition is SUSTAINED with FINAL LEAVE TO AMEND. Any amended Petition to be filed 30 days from notice of this order. Respondent to give notice.
4.	30-2025-01456606 Mackey vs. Packnit 1. Case Management Conference 2. Motion to Be Relieved as Counsel of Record Marc Lazo of K&L Law Group, P.C. (“Moving Attorney”) moves to be relieved as counsel of record for plaintiff Daniel Mackey. The motion is unopposed and Moving Attorney has stated a basis for permissive withdrawal under the Rules of Professional Conduct, Rule 1.16. However, it is unclear whether proper service has been performed. Moving Attorney’s declaration does not indicate whether the client was personally served with the motion papers or served by mail. Further, the proofs of service filed with the moving papers indicate that service was done by email but they do not list any email address for the client.

		Further, if service was by email, there is no declaration stating that the electronic service address is the client's current electronic service address as required under rule 3.1362. Accordingly, Moving Attorney is ordered to provide updated proofs of service to the Court on or before the hearing date showing that Plaintiff was properly served with the moving papers either by mail or email. If service was by email, Moving Attorney shall provide a supplemental declaration stating that the electronic service address is the client's current electronic service address as required by rule 3.1362(d)(2). If Moving Attorney provides proof that the moving papers were properly and timely served on the client, the motion to be relieved will be GRANTED. The order relieving counsel will be effective upon counsel filing a proof of service of a copy of the signed order on the client and on all parties that have appeared in the case. (Cal. Rules of Court, Rule 3.1362(e).) Moving Attorney to give notice.
5.	30-2025-01499688 Barrera vs. Toyota Motor Sales, USA Inc	1. Case Management Conference 2. Demurrer to Complaint 3. Motion to Strike Portions of Complaint Defendant, Toyota Motor Sales, U.S.A., Inc.'s demurrer and motion to strike directed at the Complaint of Plaintiffs David Barrera and Maria Barrera (ROA 33, 37) set for hearing on May 14, 2026, are MOOT. A First Amended Complaint was filed on May 1, 2026. (ROA 87). When a plaintiff files an amended complaint after a demurrer or motion directed to the original complaint is filed, but before they are decided, the demurrer or motion becomes moot. (<i>JKC3H8 v. Colton</i> (2013) 221 Cal.App.4th 468, 477; <i>State Compensation Ins. Fund v. Superior Court</i> (2010) 184 Cal.App.4th 1124, 1130-1131; <i>Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.</i> (2004) 122 Cal.App.4th 1049, 1054. "[A] plaintiff has a right to amend his or her pleading at any time before a responsive pleading is filed and even after a responsive pleading is filed up to the time of the hearing on the demurrer." (<i>Barton v. Khan</i> (2007) 157 Cal.App.4th 1216, 1221 [finding that trial court erred in refusing to accept the amended complaint for filing and explaining that the clerk should have accepted amended complaint filed three days before hearing on a demurrer to complaint, and had clerk done so, the hearing on the demurrer would have been taken off calendar].) Accordingly, the hearing on May 14, 2026, is VACATED. IT IS SO ORDERED. The <u>Case Management Conference</u> is CONTINUED to June 11, 2026 in Department C34 at 9:00 a.m. The Court orders clerk to give notice.
6.	30-2024-01415362 Vascular Imaging Professionals, Inc vs. Advanced Cardiology Center	1. Motion to Quash Discovery Subpoena Based on applicable law, and for the reasons set forth herein, Defendants Advanced Cardiology Center ("ACC") and Syed J. Raza's ("Dr. Raza") (together, "Defendants") Motion to Quash Subpoena to Bank of America is GRANTED.